

24VECV04798 24VECV04798

County: los-angeles

Division: Civil Law and Motion

Department: U

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Case Number: 24VECV04798 Hearing Date: August 4, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

LES FIELDS,

Plaintiff,

vs.

FARMERS INSURANCE COMPANY,

Defendant.

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CASE NO: 24VECV04798

[TENTATIVE] RULING RE: PLAINTIFF'S MOTION FOR RECONSIDERATION OF THE COURT'S ORDER GRANTING
DEFENDANT'S MOTION FOR SUMMARY JUDGMENT

Dept. U

8:30 a.m.

August 4, 2026

BACKGROUND

This case arises from a dispute as to insurance coverage between Plaintiff Les Fields and Defendant Fire Insurance Exchange. Plaintiff is self-represented.¹

On September 30, 2024, Plaintiff filed his complaint against Defendant "Farmers Insurance Company," seeking/alleging two (2) claims of declaratory relief.

On December 17, 2024, Plaintiff filed a form amendment to correct Defendant's name from "Farmers Insurance Company" to "Fire Insurance Exchange."

On December 19, 2024, Defendant filed its answer to the complaint.

On March 18, 2026, Defendant filed its motion for summary judgment.

On July 1, 2026, the Court granted Defendant's motion for summary judgment.

On July 8, 2026, Plaintiff filed his motion for reconsideration.

As of 5:00 P.M. on July 31, 2026, nothing further had been filed in this matter by any party.

RULING

The motion is denied.

LEGAL STANDARD

“A party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.”²² Code Civ. Proc., § 1008 (b).

DISCUSSION

Plaintiff moves for reconsideration of the Court's order granting Defendant's motion for summary judgment.

Plaintiff attests that after the Court ruled on the summary judgment motion, he forwarded a copy of the Court's minute order to Kelly Dehoff and to Gaelen Martin. Plaintiff attests that Ms. Dehoff and Ms. Martin thereafter informed Plaintiff, for the first time, that they had notified Defendant of an alleged break-in and robbery on multiple occasions, including in May 2020. (Fields decl., ¶¶ 12-14.)

Both Ms. Dehoff and Ms. Martin provide declaration testimony that they gave Defendant multiple communications regarding missing personal property at the ranch as early as May 2020. Both Ms. Dehoff and Ms. Martin attest that Defendant was notified that the complete extent of the loss was still unknown and that more documentation would be provided. Both Ms. Dehoff and Ms. Martin attest that Defendant did not inform them that any failure to timely submit claim documents might result in Plaintiff's claim being time-barred. (Dehoff decl., ¶¶ 7-18; Martin decl., ¶¶ 7-18.) Neither Ms. Dehoff nor Ms. Martin provides documentation of their communications with Defendant dating back to May of 2020, nor do they specify by what means the communications were transmitted.

As to Plaintiff's explanation for why he did not present testimony from Ms. Martin before the ruling on the motion for summary judgment, Plaintiff vaguely cites the existence of a Mendocino County court order restricting his communications with Ms. Martin. As to Ms. Dehoff, Plaintiff provides no explanation for why he was unable to obtain testimonial evidence from Ms. Dehoff before the summary judgment hearing. Plaintiff merely states that he “did not know these communications had occurred.” (Fields declaration, ¶ 8.)

The Court disagrees with Plaintiff that he has met his burden as to showing why certain evidence could not be obtained and presented before the hearing on the motion for summary judgment. Plaintiff states that he forwarded the Court's order to Ms. Dehoff, who Plaintiff appears to have unrestricted communication with, to obtain her version of events regarding when she spoke with Defendant in May 2020. Ms. Dehoff is in communication with Ms. Martin, who also readily presented her version of events. Plaintiff's vague reference to a Mendocino County court order restricting his communications with Ms. Martin is insufficient to explain why Ms. Martin's testimony regarding her communications with Defendant in May 2020 was not obtainable by Plaintiff if, as appears to be the case, Plaintiff and Ms. Martin have been communicating through intermediaries, including Ms. Dehoff.

When defending against summary judgment, Plaintiff had a responsive burden to obtain and present evidence in support of his claims. Plaintiff failed to meet that burden. Plaintiff cannot now claim to have newly discovered facts to support his summary judgment defense that could have been obtained before the motion was argued.

As to whether the new testimony from Ms. Dehoff and Ms. Martin creates a triable issue of fact, the Court does not follow Plaintiff's argument that their statements that they communicated with Defendant in May 2020 regarding a potential claim supports Plaintiff's position that summary judgment should have been denied. When granting Defendant's motion for summary judgment, the Court found as follows:

"Under Plaintiff's policy and controlling California law, the 1-year limitations period began to run at that time because an appreciable loss was known to Plaintiff and his notification obligations had been triggered. Therefore, the contractual deadline to file suit expired on or around May 17, 2022, one (1) year after the inception of the loss. Plaintiff failed to report the loss to the Mendocino County Sheriff until September 27, 2023. Plaintiff failed to file an insurance claim until December 12, 2023. Plaintiff did not file this case until September 30, 2024, well beyond the expiration of the 1-year limitations period." (Minute Order dated July 1, 2026, p. 9.)

Ms. Dehoff's and Ms. Martin's new statements that they were aware of missing property at the ranch and that they reached out to Defendant in May 2020 do not help Plaintiff's position. Rather, their statements provide evidence that Plaintiff's colleagues (much like Plaintiff himself) were aware of missing property well before Plaintiff filed a claim and well before Plaintiff filed this lawsuit. Plaintiff apparently takes the position that Ms. Dehoff's and Ms. Martin's communications with Defendant from May 2020 were sufficient to initiate a formal claims process, but he submits no law or documentation to support such a conclusion.

Plaintiff asserts, "An insurer cannot instruct an insured regarding claim procedures and later use compliance with those instructions as a basis for forfeiture." (Motion, p. 8:1-2.) Plaintiff asserts that because Ms. Dehoff and Ms. Martin were in communication with Defendant in May 2020, there exists a triable fact issue as to whether Defendant wrongfully failed to warn that coverage might be forfeited and wrongfully directed Ms. Dehoff and Ms. Martin that they should submit documentation when it became available.

While the Court agrees with Plaintiff that an insurer should not be able to use false instructions regarding a claims procedure as a basis for forfeiture, the Court disagrees with Plaintiff that he has presented evidence of false instructions from Defendant in this case. Ms. Dehoff's and Ms. Martin's testimonies that they were told to submit documentation to Defendant when it became available does not show that Defendant gave them incorrect information regarding the claims procedure. Plaintiff cites no law showing that Defendant had an affirmative duty to inform Ms. Dehoff and Ms. Martin of certain deadlines re: claims forfeiture, nor has Plaintiff shown that those deadlines were not stated in, e.g., Plaintiff's insurance policy.

In sum, Plaintiff fails to meet his burden of showing why he could not obtain and present his newly submitted evidence before the hearing on Defendant's summary judgment motion. Plaintiff also fails to show that the newly submitted evidence compels a different result as to the summary judgment motion. The reconsideration motion is denied.

CONCLUSION

Plaintiff Les Fields' motion for reconsideration is DENIED.

The Clerk is ORDERED to give notice.

DATED: August 4, 2026

Lee S. Arian

Judge of the Superior Court